

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2020

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR. CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE..... ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA..... ASSOCIATE JUSTICE

The Intestate Estate of Abel L. Clarke, represented)
by its Administrators E. Fatu Wright Doe, Christian M.)
Wright and Abel B. Wright and all those acting under their)
authority, and the Management of CICO represented by its)
Managing Director Fu Lianguan, all of Montserrado County,)
Liberia..... Appellants)

VERSUS

Appeal

His Honor Scheaplor R. Dunbar, Assigned Circuit Judge,)
Civil Law Court B, Sixth Judicial Circuit, Montserrado)
County and the Intestate Estate of Ethel Louise)
Holder Bethune, represented by and thru its Administrator)
S. Raymond Holder of Montserrado County, Liberia)
..... Appellees)

GROWING OUT OF THE CASE:

The Intestate Estate of Ethel Louise Holder Bethune)
represented by and thru its Administrator, S. Raymond)
Holder of Montserrado County, Liberia.....Plaintiff)

VERSUS

ACTION OF EJECTMENT

The Intestate Estate of Abel L. Clarke, represented)
by and thru its Administrator E. Fatu Wright Doe, Christian)
M. Wright and Albert B. Wright and all those acting under)
their authority.....1ST Defendant)

AND

The Management of CICO represented by its Managing)
Director Fu Lianguan, all of Montserrado County,)
Liberia.....2ND Defendant)

Heard: November 19, 2019

Decided: September 3, 2020

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

This appeal has its genesis in an action of ejectment filed before the Civil Law Court, Sixth Judicial Circuit, Montserrado County on August 5, 2013, by the appellee, the Intestate Estate of Ethel Holder Bethune, represented by its administrator, S. Raymond Holder, against the appellant, the Intestate Estate of Abel L. Clarke, represented by its administrators, E. Fatu Wright Doe, Christian

M. Wright and Albert B. Wright, who were designated as first defendants in the trial court and the Management of a Company called CICO, as second defendant.

The appellee alleged that it is the owner of a fifty-five (55) acres of land situated in the Township of Louisiana, Montserrado County; that the said property was purchased on April 25, 1975 from Solomon T. Edwards, Walter W. Liburd, Martiney A. Jackson and Abel Louis Clarke, the latter Intestate Estate being one of the present co-appellant; that the co-appellant and CICO entered upon a portion of the said property without the consent of the appellee and commenced a business venture of excavating rocks for the purpose of producing crushed rocks; that these commercial activities by the appellants continued unabated to date; and that by virtue of said activities portion of the appellee's land is now like a lagoon, defaced and depreciated; that an investigative survey was conducted by an institution called the Norwegian Refugee Council (NRC) under the auspices of the Land Task Force Committee of the Township of Louisiana, but that the first and second defendants refused to participate in the survey, which report by the NRC concluded that the property being occupied by the appellants was part and parcel of the appellee's 55 acres of land; and that upon the refusal of the first and second defendants to accept the findings by the NRC, the appellee instituted the ejectment action. The appellee prayed the trial court to eject the appellant and to award special and general damages for wrongful withholding and defacing of the portion of its property for a period of six (6) years and three (3) years of leasing same to CICO, in the amount of US\$15,069,600.00 (Fifteen Million Sixty Nine Thousand, Six Hundred United States Dollars) with the breakdown as follows:

1. "Daily extraction of rocks, 20 loads of truck per day value at Three Hundred Fifty United States Dollars, $US\$350.00 \times 26$ working days = $US\$182,000.00$ (One Hundred Eighty Two Thousand United States Dollars) per month.
2. Annual extraction and illegal transporting of Truck Load of crush rocks $US\$182,000.00 \times 12$ months = $2,184,000.00$ (Two Million One Hundred Eighty Four Thousand United States Dollars)
3. Annual depletion cost of six (6) years = $US\$13,104,000.00$ (Thirteen Million One Hundred Four Thousand United States Dollars)

4. Legal fees 15% of US\$13,104.00 is One Million Nine Hundred Sixty Five Thousand Six Hundred United States Dollars (US\$1,965,600.00)
5. General damages according to jury discretion of Fifteen Million Sixty Nine Thousand Six Hundred United States Dollars (US\$15,069,600.00)..."

On August 5, 2013, the Co-appellant, the Intestate Estate of Abel Louis Clark filed its answer but amended same on September 5, 2013, wherein it alleged that the appellee was on a "fishing expedition" and in search of its missing property; that the property in dispute is part and parcel of the Intestate Estate of Abel Louis Clark and not the appellee; that the disputed property contains two (2) parcels of land originally owned by Abel L. Clarke containing 160 and 100 acres of land, respectively; that said property descended from the Intestate Estate of Abel Louis Clarke to his late wife Louise Mars Clarke; that the late Abel Louis Clarke and his late wife lived on the subject lands for more than thirty (35) years, during which period no persons, including the appellee ever laid claim to same even after the death of Louise Mars Clarke in 1979; and that the appellant's administrators being the owner of the property, they legally and rightly leased the property to the Co-appellant (second defendant) CICO. The appellant prayed the trial court as follows:

"...to deny and dismiss the plaintiff's complaint in its entirety because the plaintiff is laying claim against the wrong property; that the result of its (the appellee's) bogus survey is not binding upon the defendants since the defendants were not party to such (a survey) and that the plaintiff is entitled to no damages because the co-defendant, the Intestate Estate of Abel L. Clarke is being legally administered by the administrators and that the operations of the Co-Defendant CICO is supported by a valid lease agreement and to grant unto the defendants, all further relief that Your Honor will deem just, legal and equitable."

The Co-appellant (2nd defendant), CICO filed its answer alleging that it entered upon the property based upon two (2) separate lease agreements with the Abel

Louis Clark Intestate Estate; that its excavating activities on the property is legal pursuant to the lease agreements; that the allegations stated in the complaint against it, the 2nd defendant is false; and that the complaint should be dismissed.

Pleadings having rested, both parties filed several motions and resistances. The trial court listened to oral arguments *pro et con* and disposed of the motions and the disposition of law issues. On April 11, 2016, at the call of the case with both parties legal counsels present, the trial court at the behest of both parties made the below quoted ruling, to wit:

“...The request of both sides in this case for this matter to be submitted to arbitration is hereby granted and the clerk of this court is hereby ordered to send a communication to the Minister of Lands, Mines & Energy requesting said minister to nominate and submit a name of a licensed, qualified and registered land surveyor to this court within three days from today’s date so that he/she may serve as chairman of the board of arbitration. The parties are also ordered to submit the names of their members of the board of arbitration within three days from today’s date, April 11, 2016, along with the arbitration agreement.”

Pursuant to the trial court’s order, both parties, the appellants and the appellee on April 14, 2016, filed before the trial court a joint stipulation for arbitration, setting forth the following conditions, to wit:

“.... AGREEMENT FOR ARBITRATION

That the Defendant/Movant and Plaintiff/Respondent in the above entitled cause of action by and thru their respective counsels hereby pray Your Honor and this Honorable Court for the approval of arbitration for reasons showeth as follow to wit:

WHEREAS, the Plaintiff/Respondent is claiming fifty-five (55) acres of town lot of land situated at Louisiana, County of

Montserrado, Republic of Liberia of which portion the Defendant/Movant are illegally occupying.

WHEREAS, the Defendant/Movant has denied occupying any land belonging to the Plaintiff/Respondent.

WHEREAS, the metes and bounds of the disputed property are separate and distinct based on the titled deeds of the two (2) parties.

WHEREAS, an arbitration to allow the conduct of a survey by qualified and licensed surveyors has been alluded to by the parties as the best and suitable means to determine the actual owner of the portion of the parcel of land subject of these proceedings.

NOW THEREFORE, and in consideration of the mutual understanding and agreement reached between the parties herein, the parties have agreed as follow to wit:

1. That the parties hereby agreed that an arbitration survey be conducted by three (3) qualified and licensed surveyors.
2. That the Plaintiff/Respondent and the Defendant/Movant will each submit the name of a licensed and qualified surveyors to the Board of Arbitration as their technical representatives; and the expense of the said surveyors shall be equally borne by those who appointed them to the Board of Arbitration.
3. That the Court shall write the Ministry of Lands, Mines and Energy to name and recommend a qualified and licensed surveyor to serve as Chairman of the Board of Arbitration whose expenses shall be jointly and equally borne by the Plaintiff/Respondent and the Defendant/Movant.

4. That both parties shall agree upon the court's appointed qualified and licensed surveyor who shall serve as Chairman of the Board of Arbitration.
5. That the Board having been duly constituted should proceed and conduct an Arbitration Survey and report therefrom shall be submitted and read in open court.
6. That the Plaintiff's and the Defendant's Deeds and all relevant documents be submitted to the Board of Arbitration to facilitate the Board's work.
7. That all adjacent parties to the subject three hundred acres of land shall be notified by the Team of Arbitration to be present and represented by their respective qualified and licensed surveyors to participate in the subject survey.
8. That the court shall give the time within which the report shall be made by the Arbitrators.
9. That the award of the report shall be in writing and binding on the parties.

WHEREFORE AND IN VIEW OF THE FOREGOING, the Parties hereto respectfully pray Your Honor and this Honorable Court to approve this Arbitration Agreement so as to lay this long standing matter to rest..."

The records show that a Board of Arbitration was duly constituted consisting of three (3) licensed surveyors. The appellants appointed Surveyor Tom Nimely as their representative to the Board, while the appellee appointed Surveyor Josiah William as its representative to the Board. The Ministry of Lands Mines and Energy in compliance with the trial court's request, submitted the name of Surveyor Lawrence R.M. Henries to serve as Chairman of the Board of Arbitrators.

Thereafter, the arbitrators proceeded to the disputed property in the Township of Louisiana, Montserrado County and conducted the survey utilizing the parties' deeds. On April 3, 2017, the arbitrators concluded their investigation and prepared a report containing their findings, in favour of the appellee. A review of the Arbitrator's Report reveal that the report was signed by the majority of the arbitrators in persons of its' Chairman, Mr. Lawrence R.M. Henries and Josiah William the appellee's representative on the Board of Arbitration. Relevant excerpts of the Arbitration Report, awarding the property to the appellee is quoted herein below, to wit:

"...we conclude this report with these diagrams after a careful observation from the field survey and the plotting of all deeds. The first diagram shows the ground location of both parties and the deed of the plaintiff and not the deed of the defendant because deeds presented by the defendant (administrator of the Intestate Estate of Abel Clarke) do not call for that particular location in question. The second diagram shows the two parties in question with the adjacent parties' deed location. The third diagram shows the deeds presented by the defendant. Looking at the two deeds presented, there is nothing there even to show the feature with the St. Paul River. Looking at all of these, we concluded that the two deeds have no bearing on that particular location.

RECOMMENDATION:

We therefore recommend to this honorable court that the plaintiff be placed in possession of this property."

On January 17, 2018, almost nine months after the submission of the Arbitration Report to the trial court, arbitrator Tom Nimely, the appellants' representative on the Arbitration Board submitted a document he named and styled "Dissenting View To Surveyor Lawrence Henries Board of Arbitration, Survey Map and Theoretical Report".

On January 30, 2018, the trial court read the Arbitration Report. The appellants noted exceptions to the report and gave notice to take advantage of the statute controlling. We observe that the appellants took no steps to file formal objection to the Arbitration Report. The records show that on March 5, 2018, the appellee obtained a clerk's certificate to the effect that the appellants had failed to file objections to the report within 30 days as of the reading of the report as mandated by law.

Thereafter, on March 23, 2018, the appellee filed a motion for the enforcement of the arbitration award on grounds that the appellants had failed to file an objection to the award, and as such it should be placed in possession of the disputed property. On March 26, 2018, almost 60 days after reading the arbitration award, the appellants filed resistance requesting the trial court to deny the appellee's motion for enforcement of the arbitration award on ground that no final judgment had been entered by the trial court upon the reading of the Arbitration Report and its award. Also on the same date, March 26, 2018, the appellants filed a motion for the enlargement of time, containing a request that the trial judge enlarges the 30 days statutory period to allow for the filing of its objection to the Arbitration Report. The appellants alleged that their lawyer, Counsellor Cooper W. Kruah was involved in the formation of the government during the month of January 2018, and that during this time he did prepare the objection to the Arbitration Report but locked same in his office. The appellants' 4 count motion on this point reads thus:

“...AND NOW COMES MOVANT and most respectfully prays Your Honor and this Honorable Court to grant the Movant's Motion for Enlargement of Time and sheweth the following to wit:

1. That Chapter 1, Section 1.7 of the Civil Procedure Law, paragraph 2 sub paragraph (b) provides “that upon motion made after the expiration of the prescribed period to permit the act to be done when the failure to act was the result of excusable neglect.”
2. Further to count one above, Movant says that the Legal Counsel, Cllr. Cooper W. Kruah, Sr., who was handling this matter at the Law Firm did prepared the objection sometime in January 2018, but due to his involvement with the formation of the Government after the

elections, the Motion papers remained in his office until the statutory period elapsed. This failure to have filed within the statutory period was for no cause of the Movant but was due to the schedule of the Movant's Counsel which could be considered as excusable neglect because even though the Motion papers were prepared but remained locked up in the Counsel's office due to his engagement with the Government.

3. Movant further avers and says that this excusable neglect due to its Counsel should not jeopardize or affect the Movant's interest in these proceedings.
4. Movant also avers and says that as a matter of fact, the Movant's Surveyor or Technical Representative to the Arbitration Board filed a Dissenting Report on January 17, 2018 and the Movant's Objection papers were prepared and signed on the 20th day of January 2018. The only neglect was that the Counsel left the motion papers in his office because during the particular period, he was not at the office due to his engagement with the governance process. Copy of the Dissenting Report filed by the Movant's Surveyor which constitutes the basis of the Movant's Objection is hereto attached and marked as Movant's Exhibit "M/1" to form a cogent part of this Motion. The court is also requested to take judicial notice of the records to the effect that the Objection of the Movant's Surveyor was filed for and on behalf of the Movant."

On April 12, 2018, the trial court rendered its final ruling holding the appellant liable to the appellee and ordered that the latter be placed in possession of the disputed property, thus confirming the award contained in the Arbitration Report. We quote what we have determined as the relevant portion of the trial judge's ruling, as follows:

"...The sole issue in this case is whether the movant [appellee] has alleged sufficient legal grounds for the confirmation of the arbitral award.

Under our law, a party who excepts to the findings and award of the Board of Arbitration must file its objections within thirty (30) days as of the date of the reading of the report in open court. **1LCLR, Civil Procedure Law, Section 64.11, subsections 1 and 2.**

The majority report of the board of arbitrators was read in open court on January 30, 2018, at which time the 1st respondent's [co-appellant] counsel was absent. Counsel for the 2nd respondent noted exceptions to the report. By operation of law, the respondents were required to file their objections to the arbitral survey report on or before March 1, 2018. Respondents [appellants] failed and neglected to file their objections to the report within the statutory period.

Under our law, upon written motion of a party, the court shall confirm an award unless, within the 30-days statutory period, grounds are urged for vacating, modifying, or correcting the award, or reasons are assigned for clarifying it. **1LCLR, Civil Procedure Law, Section 64.10.**

During the oral arguments, counsel for 1st respondent [co-appellant] informed this court that it did not file its objections because its lead Counsel, Cllr. Cooper Kruah was busy with the elections and therefore was unable to file respondent's objections within the statutory period. The reason advanced by the 1st respondent's [co-appellant] counsel cannot be accepted by this court as a valid ground or reasons for not filing its objections within the period of thirty (30) days. Counsellor Kruah was not the only lawyer at the Henries Law Firm, so even if he was very busy with election matters, which did not prevent other lawyers at the firm from filing the objections for the 1st respondent. [co-appellant]

Due to respondents' [appellants] failure to file any objections to the majority report and/or award, this court herewith confirms the award pursuant to Section 64.10 of the Civil Procedure Law. The movant's [appellee] motion is hereby granted and the resistance denied. The findings and award of the Board of Arbitration are confirmed.

COURT'S FINAL JUDGMENT

The court having confirmed the majority report and award of the Board of Arbitration, the court adjudges defendant liable in ejectment and are ordered ousted and evicted from the plaintiff's [appellee] property. The clerk of court is ordered to issue a writ of possession and place same in the hands of the Sheriff of this court. The sheriff, with the assistance of the Chairman of the Board of Arbitration, shall proceed to the disputed property and put the plaintiff [appellee] in full possession thereof in keeping with the metes and bounds of the plaintiff's title deed. Costs ruled against defendants."

The appellants noted exceptions to the trial court's ruling; announced an appeal to the Supreme Court and perfected their appeal by filing a 7 count bill of exceptions, an appeal bond, and a notice of completion of the appeal, all within the time allowed by statute. The 7 count bill of exceptions which basically challenge the arbitration award and the trial court's final ruling is quoted herein below, to wit:

APPELLANTS' BILL OF EXCEPTIONS

AND NOW COMES APPELLANT and most respectfully prays Your Honor and this Honorable Court to approve this Appellant's Bill of Exceptions so that the Honorable Supreme Court can review and correct the many reversible errors made by Your Honor in manner and form as follows to wit:

1. That Your Honor erred and made a reversible error because Your Honor overlooked the fact that Abel Clarke died in 1945, but the Plaintiff/Appellee herein presented a 1966 Deed which was allegedly signed by Abel Clarke which clearly established that the Deed presented by the Appellee was a product of fraud.
2. That Your Honor erred and made a reversible error because assuming without admitting that the Appellee owns fifty five (55) acres of land and that Abel Clarke was one of the Grantors, an impartial Surveyor would have first surveyed the Abel Clarke 1945 Deed surveying the fifty five (55) acres that is being claimed by the Appellee for reason

that the 1945 Deed was acquired before the 1966 Deed and the only logical conclusion would have been that the Appellee 1966 Deed encroached on the 1945 Deed of Abel Clarke. This fact was ignored by Your Honor thereby making a reversible error.

3. That Your Honor erred and made a reversible error because the Chairman of the Arbitration Board concluded that the Abel L. Clarke's Deed could not be plotted on the ground even though the Appellee's property commenced from the Appellant's property, meaning that the conclusion of the majority members of the Arbitration Board was not supported by the records. The confirmation of this erroneous conclusion of the Arbitration Team by Your Honor constituted reversible error.
4. That Your Honor erred and made reversible error because Your Honor failed to take into consideration that a Motion for Enlargement of Time may be granted as a matter of discretion even if the time allowed for the completion of an act has expired, all addressed to the sound discretion of the Court. Your Honor refusal to have granted the Motion for Enlargement of Time constituted an abuse of discretion thereby committing a reversible error.
5. That Your Honor erred and made a reversible error because the evidence showed that Abel L. Clarke died in 1945. From the records presented by the Appellee, specifically the 1966 Deed could not have justified any basis for Your Honor to have confirmed the Findings of the Board of Arbitration thereby making a reversible error.
6. That Your Honor erred and made a reversible error in that this is a property matter. The Supreme Court has held in several line of Opinions that Judges are supposed to be very careful in making decision in depriving one from his property right guaranteed by the Constitution of Liberia, meaning that any decision of a Court must take into consideration the facts and circumstances surrounding the case. In the instant case, Your Honor ignored the following:
 - a) That if Abel Clarke died in 1945, he could not have signed a Deed in 1966.
 - b) The conclusion that Abel Clarke did not have property on the ground runs contrary to the very Deed that the Appellee presented because the

Appellee's Deed commenced from the Appellant's Deed as shown below:

"Commencing from the Northwestern Corner of the adjoining parcel of Land owned by Abel Louis Clarke's and running on magnetic bearing South 80 degrees West 465.85 fee parallel with the St. Paul River to a point; thence running South 10 degrees East 5142.8 feet parallel with Walter W. Liburd's adjoining parcel of Land; thence running North 10 degrees West 5142.86 fee parallel with Abel Louis Clarke's adjoining 40 acres of land to the place of commencement and containing Fifty Five (55) acres of land and no more."

7. That Your Honor erred and made a reversible error because the Descending Report filed by the Surveyor that represented the Appellant, clearly pointed out that the Arbitration Report as filed by the Chairman was a product of fraud and misrepresentation.

WHEREFORE AND IN VIEW OF THE FOREGOING, Appellant most respectfully prays Your Honor and this Honorable Court to approve the Appellant's Bill of Exceptions for Your Honor failure to have considered a Jury Trial or further investigation as requested by the Appellant constituted a reversible error and to also grant unto the Appellant any and all further relief that Your Honor may deem just, legal and equitable."

A perusal of the appellants' 7 count bill of exceptions show that same can be divided into three major contentions which we categorize as follow: (i) that in awarding the appellee possession of the property, the trial court allegedly overlooked the fact that the appellee's deed is a product of fraud; (ii) that the Chairman of the Arbitration Board was bias since he failed to plot-out the appellant's deed during the arbitration survey; and (iii) that the trial court abused its discretion when it denied the appellee's motion for enlargement of time which would have enable it file its objection to the arbitration award.

These contentions of the appellants raise two issues which are:

- 1) Whether or not the trial court abused its discretion when it denied the appellants' motion for enlargement of time.

- 2) Whether or not the trial court erred by affirming the arbitration report and awarding the property to the appellee.

We shall discuss these issues in their order of presentment.

Section 1.7(2) of the Civil Procedure Law which speaks to motion for enlargement of time provides thus:

“When under this title or by a notice given thereunder or by order of court an act is required or allowed to be done at or within a specified time, the court for cause shown may, except as otherwise provided by law, at any time in its discretion: (a) order the period enlarged if application is made before the expiration of the period originally prescribed or as extended by previous order, or (b) upon motion made after the expiration of the prescribed period permit the act to be done when the failure to act was the result of **excusable neglect**” [Our Emphasis]

We place great emphasis on the phrase “excusable neglect” because in a plethora of cases, the Supreme Court has upheld the enlargement of the statutory period once excusable neglect is proven from the facts and circumstances of the case. *Garden Mountain Ltd. v. Morris et al*, 38LLR 73, 76, 77 (1995); *Intercon Security system Inc., v Philips et al.*, 40LLR 30, 35 (2000); *Sheriff v. Parwon*, Supreme Court Opinion, March Term, A.D. 2015; *Sherman v. Slawon*, Supreme Court Opinion, March Term, A.D. 2017; *Bowah v. NEC*, Supreme Court Opinion, October Term A.D. 2017; *Andrew v. The Management of Workers-on-Call*, Supreme Court Opinion, March Term, A.D. 2018.

In the *Garden Mountain Ltd. case*, the Supreme Court held that “the trial court, for cause shown, may at any time in its discretion, order the period enlarged upon motion made after the expiration of the prescribed period, when the failure to act was the result of excusable neglect, although not mentioned as such by the movant.” The Court then went on to define excusable neglect as “a failure to take the proper steps at the proper time, not in consequence of the party's own carelessness, intention, or willful disregard of the process of court, but in consequence of some unexpected or unavoidable hindrance or accident or reliance

on the care and vigilance of his counsel or on promises made by the adverse party." *Garden Mountain Ltd. v. Morris et al*, 38LLR 73 (1995).

Further in the *Garden Mountain Ltd. case*, the facts show that the appellant commenced an action of damages for breach of contract against the appellee, a non-domiciliary foreign corporation, with neither an office nor an agent in Liberia. Service of process was done by publication. Subsequently, the appellee retained a Liberian lawyer who filed a motion for enlargement of time so as to file an answer. The motion was resisted, argued and denied, to which the appellee excepted and applied to the Chambers Justice for a writ of certiorari, on the ground that the trial court had abused its discretion by denying the motion. The Chambers Justice listened to arguments, granted the application, and reversed the trial court's ruling. The appellant excepted to the decision of the Chambers Justice and announced an appeal to the Supreme Court *en banc* basically contending that the ruling by the trial judge denying the motion for enlargement of time was an exercise of discretion granted under Section 1.7(2) (b) of the Civil Procedure Law, which is not reviewable.

After listening to arguments *pro et con*, the Supreme Court unanimously agreed that the facts and circumstances as presented in the motion for enlargement of time constituted excusable neglect especially so when the appellee for its part made reasonable efforts to secure a lawyer to represent its interest in Liberia. The Court then held that the trial court did abuse its discretion when it denied the motion for enlargement of time and that the writ of certiorari will be granted to correct the error of the trial court.

Another example is found in the case *Intercon Security system Inc., v Philips et al.*, 40LLR 30, 36 (2000) wherein the Supreme Court ordered the enlargement of the statutory period for the appellant to file its appeal bond as the April 6, 1996, Monrovia crisis prevented the appellant from filing its bond. We take keen observation that in all of these cases, the prevailing facts and circumstances were beyond the control of the parties and that the parties took reasonable steps to remedy the situation.

Now, applying those facts and circumstances and principles of law to the facts and circumstances of the present case, we have been unable to reconcile the Supreme

Court's position on excusable neglect as to the cases cited and to the facts and circumstances of the present case. The appellants have asserted that Counsellor Cooper W. Kruah involvement in the formation of the government and the alleged locking of the objection papers in his office constitutes excusable neglect. We disagree.

Unlike the facts and circumstances in the referenced cases where same were beyond the control of the parties, the facts and circumstances in the present case were within the ambit and control of the appellants' lawyer Counsellor Cooper W. Kruah. Recourse to the records show that although the arbitration report was read in open court on January 30, 2018, the appellants in Count four (4) of their own motion for enlargement of time attested to the fact that the objection papers were already prepared and signed 10 days before the reading of the arbitration report, that is January 20, 2018. Given this revelation, we wonder what withheld the appellants' lawyer from submitting and filing the objection papers on the same day the report was read or at least within the period of 30 days.

The assertions advanced by the appellant for failing to comply with the statutory period shows that they completely forgot, sat supinely, and neglected to comply with the 30 days mandatory statutory period in filing their objection following the reading of the Arbitration Report. The appellants' assertion to say the least is non-compelling and unimpressive for it is known that Counsellor Cooper W. Kruah is a lawyer at the Henries Law Firm that employs many lawyers to carry out its transactions. *Kuma & Kuma v. Skinner Jr.*, 33LLR 178 (1985); *American International Underwriter Inc., v. Fares Import-Export*, 30LLR 335, (1982). All lawyers representing their clients before our courts are bound by the mandatory provisions of the law and the professional code of ethics regardless of the fact they are members of the other two branches of government. Hence, this Court will not give special privilege to Counsellor Cooper W. Kruah or any government official appearing before the courts to the detriment of settled principles of law and procedure. In summary, Counsellor Cooper W. Kruah plainly forgot and neglected to file his objection within the statutory period and therefore his forgetfulness does not constitute excusable neglect.

In view of this and all that we have narrated, it is our holding that the appellant did not demonstrate excusable neglect to warrant the enlargement of the statutory

period and therefore the trial court did not abuse its discretion when it denied the appellant's motion for the enlargement of time coming 60 days after the reading of the Arbitration Report.

We shall now discuss the second issue which is whether or not the trial court erred by affirming the arbitration award of the disputed property to the appellee.

A recourse to the records reveal that on April 14, 2016 the parties entered into a written Arbitration Agreement wherein they agreed to submit their land dispute to a Board of Arbitrators, mainly surveyors who were charged with the responsibility to conduct an investigative survey, and having the requisite professional abilities to make a determination as to who owns the property, especially where they agreed that their respective title deeds were for separate and distinct parcels of land. In count 9 of the agreement they agreed that "the award of the [arbitrators'] report shall be in writing and binding on the parties." This provision of the agreement is in consonance with Section 64.1 of the Civil Procedure Law and Opinions of this Court which state, *inter alia*:

"a written agreement to submit to arbitration any controversy existing at the time of the making of the agreement or any controversy thereafter arising is valid, enforceable without regard to the justiciable character of the controversy, and irrevocable except upon such grounds as exist for the revocation of any contract." *Chicri Bros. v Isuzu motors*, 40 LLR 128 (2000); *KML v Metzger, Sr. et al* 42 LLR 216 (2004); *Gardiner v James*, Supreme Court Opinion, March Term, A.D. 2015.

Pursuant to the April 14, 2016 Arbitration Agreement, an investigative survey was conducted and a report signed by a majority of the arbitrators was submitted in favor of the appellee. The report which was conclusive in its final determination provided that the appellee be placed in possession of the disputed property because the field survey shows the location of the appellee's deed and not the appellant's deed. The Supreme Court in speaking to the enforcement of an arbitration award has held that "an arbitration award shall be binding on parties to a dispute who have agreed to submit their claims to a board of arbitration, unless grounds provided for vacating the award conforms to the statute, and that it is not within the

province of the trial judge to determine factual issues in any arbitration proceedings.” *Berry v Intestate Estate of Bettie*, Supreme Court Opinion, October Term 2013; *Koon v. Jleh*, 39 LLR 340, 341(1999). *Gardiner v James*, Supreme Court Opinion, March Term, A.D. 2015.

In the *Gardiner case*, the Supreme Court acknowledged and recognized three (3) standards for the enforcement of an arbitration award in an ejectment case: (i) there must be an arbitration agreement signed between the parties and submitted to the court pursuant to section 64.1 of the Civil Procedure Law (ii) there must be an award made by the arbitrator(s) in favor of one of the disputants (iii) the award must be conclusive and enforceable by the trial court.

In the present case all three (3) standards articulated herein above were met: (i) the records show that on April 14, 2016, the parties herein signed and submitted a joint stipulation agreement for arbitration wherein they agreed specifically at count nine (9) that: “the award of the arbitration report shall be in writing and binding on the parties”; (ii) the records show that on April 3, 2017, the Board of Arbitrators made an award in favor of the appellee; and (iii) the records show that the award is clear and conclusive in stating that “the appellee be placed in possession of the disputed property”. In view of this, we hold that the arbitration award having met the three standards espoused by this Court is binding and enforceable except on grounds provided by law.

We must emphasize that our holding stated *supra* does not imply that once these three (3) standards are met, an award is then automatically carved in stone and cannot be set aside. To the contrary, this Court in the same *Gardiner case* recognized that upon the filing of an objection, an arbitration award can be set aside on statutory grounds stated in section 64.11 of the Civil Procedure Law once same is proven in the trial court. It should be noted that although one of the arbitrators disagreed with the decision of the majority’s report and filed a “dissenting report” we must state here in un-equivocal terms that the “dissenting report” does not qualify and is not equivalent to the filing of an objection prescribed in Section 64.11 of the Civil Procedure Law which mandates what is required to vacate or modify an arbitration award. Thus, the dissenting report filed on January 17, 2018, almost nine months after the submission of the Arbitration Report, though the time of the filing does not count, has no support under the law.

This position of the Court is acknowledged and conceded by the appellants who having recognized that the dissenting report is not the objection within the contemplation of the law, attempted to enlarge the statutory period to file its objection after the mandatory 30 days statutory period had elapse.

Section 64.11 of the Civil Procedure Law which speaks to grounds for objection and vacating an arbitration award provides thus:

“Vacating an award.

1. Grounds for vacating. Upon written motion of a party the court shall vacate an award where:

(a) The award was procured by corruption, fraud, or other undue means;
or

(b) There was partiality in an arbitrator appointed as a neutral, except where the award was by confession; or there was corruption or misconduct in any of the arbitrators; or

(c) An arbitrator or the agency or person making the award exceeded his powers or rendered an award contrary to public policy; or

(d) The arbitrators refused to postpone the hearing upon sufficient cause being shown therefor or refused to hear evidence material to the controversy, or otherwise conducted the hearing contrary to the provisions of sections 64.5 or 64.6.

The fact that the relief granted in the award was such that it could not or would not be granted by a court of law or equity is not a ground for vacating or refusing to confirm an award.

2. Time for application. An application under this section **shall** (Our Emphasis) be made within thirty days after delivery of a copy of the award to the applicant except that if the application is predicated upon fraud, or corruption, or other undue means, it shall be made within thirty days after such grounds are known or should have been known”

This Court says that the failure of the appellants to file their objection within 30 days pursuant to Section 64.11 of the Civil Procedure Law quoted herein above deprived the trial court to address the allegations of fraud, that were raised for the

first time in the bill of exceptions. By electing to raise the issue of fraud, for the first time in the bill of exceptions, rather than timely presenting same before the trial court we are unable to take cognizant of these allegations because they were not raised in the trial court.

But more so, the appellants are not raising fraud as to the award granted in the Report, as provided for in Section 64.11(1)(a) of the Statute, which provides the grounds for the objection to and vacating of an award procured by corruption, fraud, or other undue means, but is raising fraud for the first time as to the appellee's title deed. Nowhere in the appellants' pleadings did they raise the issue of the appellee's deed being fraudulent, but is now raising same for the first time at the level of this Appellate Court, contrary to the law and procedures hoary with age in this jurisdiction. This Court has held that "only such matters and rulings that were interposed in the lower court and are contained in the bill of exceptions can be taken cognizance of in the appellate tribunal. *National Port Authority v. Kimah*, 31LLR 545, 548, 549 (1983); *Nyumah v. Kemokai*, 34LLR 226 (1986).

Had the appellants complied with the law, filed their objections before the trial court, squarely raising these issues and presenting evidence in support thereof, this Court would have the opportunity to review same and make a determination thereon. But for their failure to timely file an objection to the arbitration award, we are confined to apply the law and uphold the arbitration award as it is rather than to sacrifice the law to accommodate the negligence of the appellants. *Manakeh v. Toweh*, 32LLR 207 (1984); *Ezzedine v. Saif* 33LLR 21 (1985); *Blamo et al., v. The Management of Catholic Relief Services*, Supreme Court Opinion, March Term 2006; *Hussenni v. Brumskine*, Supreme Court Opinion, March Term, A.D. 2013; *National Elections Commission (NEC) v. Siebo, Jr.*, Supreme Court Opinion, March Term A.D. 2017.

Accordingly, we hold that the trial court committed no error by confirming the arbitration award which show that the metes and bounds described in the appellee's deed corresponded with the ground location of the disputed property and not the appellant's deed.

Now, before concluding this Opinion, we take judicial notice of the fact that the appellee prayed for general damages in the amount of US\$15,069,600 (Fifteen

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Accordingly, we hold that the trial court committed no error by confirming the arbitration award which show that the metes and bounds described in the appellee's deed corresponded with the ground location of the disputed property and not the appellant's deed.

Now, before concluding this Opinion, we take judicial notice of the fact that the appellee prayed for general damages in the amount of US\$15,069,600 (Fifteen

Million Sixty Nine Thousand Six Hundred United States Dollars) for the excavation of rocks, and depletion of the property. Notwithstanding this prayer, we see no documentary evidence showing that the appellee suffered damages to the amount prayed for, except for the mere allegation in the appellee's pleading wherein it attached a self-serving calculation for injury in the amount of US \$15,069,600 (Fifteen Million Sixty Nine Thousand Six Hundred United States Dollars). It is trite law that mere allegation does not constitute proof and that every allegation must be proven by the preponderance of evidence.

This Court has held that "in an ejectment case, it is a legal requirement that a plaintiff presents proof to warrant the scale of the award of general as well as special damages." *Teahjay v. Dweh*, Supreme Court Opinion, October Term A.D. 2013. This Court has made it mandatory that a party seeking award of general damages on account of wrong and injuries allegedly sustained, as the appellee in the instant case, provide evidence of the magnitude of the injuries suffered as a basis to enable the court to gauge the size of the award to be appropriately granted *Townsend v C. Oyer Memorial Hospital*, 11LLR 288 (1952); *Cooper et al. v Davis et al.* 27 LLR 310 (1978); *Monrovia Tobacco Corporation v Flomo*, 36 LLR 523, (1989); *Logging and Wood Processing Corporation v Allison*, 40 LLR 199 (2000); *Teahjay v. Dweh*, Supreme Court Opinion, October Term A.D. 2013. In the absence of convincing evidence to support the amount requested by the appellee as general damages, this Court cannot award the amount of US \$15,069,600 (Fifteen Million Sixty Nine Thousand Six Hundred United States Dollars).

However, although the appellee did not show proof that it suffered damages in the amount of US \$15,069,600 (Fifteen Million Sixty Nine Thousand Six Hundred United States Dollars), the appellants on the other hand have not refuted the fact that the property was rented to CICO or the fact that the appellants received rents from CICO for three years or the excavation activities carried out on the property for three years that resulted to the damage and defacing of the appellee's property. In fact, the records show that the appellants for their part made admission that they are in possession of the property in dispute; that the said property is currently leased to CICO; that CICO is paying rent to the co-appellant; and that excavating activities are currently being carried out on the property by CICO. It is trite law that all admissions made by a party or his agent operates against the party and his agent making said admission. Hence, in view of the admissions made by the

appellants, this Court holds that the conduct of the Intestate Estate of Abel L. Clarke constitutes the illegal withholding of the appellee's property, the subsequent leasing of the property to CICO and the excavation activities from which the Abel L. Clarke Intestate Estate received economic benefits, did indeed cause injury to the appellee and its property for which damages will attach.

The Civil Procedure Law Rev Code 1:62.3 provides that: "in a complaint in an action of ejectment, the plaintiff may demand damages for wrongful detention of the real property as well as delivery of possession." Now, although the trial court did not award the amount of damages prayed for by the appellee, this Court says that pursuant to the rule that the Supreme Court can correct, modify and enter the requisite judgment that the trial court should have entered, we hold that the Intestate Estate of Abel L. Clarke and CICO are liable to the appellee in the amount of US\$300,000.00 (Three Hundred Thousand United States Dollars) for wrongfully withholding the portion of the appellee's property for a period of six (6) years, the estate financially benefiting therefrom by the lease to CICO, defacing and depreciating the property. *Townsend v. Cooper*, 11LLR 52 (1951); *Lamco J.V. Operating Company v. Rogers*, 29LLR 267 (1981); *Teahjay v. Dweh*, Supreme Court Opinion, October Term, A.D. 2013.

WHEREFORE AND IN VIEW OF THE FOREGOING, the judgment of the trial court awarding the property to the appellee is affirmed and the Co-appellant, the Intestate Estate of Abel Louis Clarke and CICO are liable to the appellee for damages in the amount of US \$300,000.00 (Three Hundred Thousand United States Dollars) for the wrongful withholding, defacing, deterioration and depreciation of the appellee's property. The Clerk of this Court is ordered to send a mandate to the trial court ordering the presiding judge to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Counsellor Neto Z. Leighe of the Sherman & Sherman Inc., in association with Counsellor Cooper Kruah, Sr. of the Henries Law Firm appeared for the appellants. Counsellor Festus Nowon of the Dugbor Law Firm appeared for the appellee.